

22STCV17819 22STCV17819

County: los-angeles

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Tentative Ruling

Farer v. Greystar Holdings, Case
no. 22STCV17819

Hearing date July 2, 2026

Defendant

Southern California Gas Company's Motion for Sanctions

Plaintiff

bicyclist Farer sued defendants Greystar Holdings, Ruiz, GS Santa Fe Apartments, Southern California Gas Co. ("SoCal Gas") and Boudreau Pipeline Corp. for injuries sustained when he was hit by a traffic cone struck by Ruiz's car. Greystar and Ruiz have been dismissed. SoCal Gas moves for sanctions, asserting it is an improper defendant. Plaintiff opposes.

Per

Code Civ. Proc. §128.5 a court may order a party to pay reasonable expenses, including attorneys' fees, incurred as a result of bad faith or frivolous action or tactics, including the filing of a complaint. "Frivolous" means "totally and completely without merit or for the sole purpose of harassing" a party. Civ. Proc. Code §128.5(b). Per section 128.7, "by presenting to the court... a pleading... an attorney... is certifying that to the best of the person's knowledge, information, and belief, formed after" a reasonable inquiry, the pleading is not being presented for an improper purpose, such as to harass or delay and allegations and other factual contentions have evidentiary support or are likely to have evidentiary support. Civ. Proc. Code §128.7(b).

SoCal

Gas provided Kochem's declaration to plaintiff in support of its request for voluntary dismissal on 11/18/24. SoCal argues the declaration "establishes that SoCal Gas had no involvement in Plaintiff's alleged incident and was not working at or near 2771 North Garey Avenue during the relevant period." Decl. Van Buren, para. 8. SoCal Gas argues it establishes "SoCalGas did not own, utilize, or place any traffic cones in the roadway at or near the location of the alleged incident." Id. at para. 10.

Plaintiff

opposes, arguing he has no obligation to accept SoCal Gas' self-serving affidavit. Plaintiff argues the Kochem declaration established SoCal Gas was involved in a construction project near the location of injury, 9 months prior. See Decl. Van Buren, exh. 2. Plaintiff admits the Kochem declaration does not establish liability against SoCal Gas, but argues SoCal Gas' involvement in the area is a basis to keep it in the case during discovery.

The

complaint alleges plaintiff was injured at 2771 North Garey Avenue; plaintiff testified in deposition that he was injured on West Bonita Avenue. See Decl. Van Buren, para. 16, exh. 3. SoCal Gas argues neither the Kochem declaration nor any discovery linked SoCal Gas to the area where plaintiff was actually injured. SoCal Gas reasserts the only link between it and the area region was a gas-line installation project, 9 months earlier. Id. at exh. 2.

Plaintiff

argues SoCal Gas failed to comply with safe harbor statutes. Code Civ. Proc. §128.7 provides for a 21-day safe harbor period prior to filing a motion for sanctions. Plaintiff asserts the 21-day notice SoCal Gas served was defective, as it was served on incorrect email addresses and an old physical mailing address. See Decl. Pocrass, paras. 1-8. Plaintiff argues the motion must be denied on procedural grounds.

"It

is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion." Carlton v. Quint (2000) 77 Cal.App.4th 690, 697. Plaintiff filed opposition on 6/19/26. At hearing on 6/24/26 plaintiff's counsel represented to the court

that, notwithstanding the typo in one of the service email addresses, his opposition was based on the merits of the motion, and he did not need further time for briefing. 6/24/26 Min. Order. Any defect in service was waived.

SoCal

Gas' motion is unavailing. Sanctions under Code Civ. Proc. §§128.5 and 128.7 are intended to rectify frivolous filings which no reasonable attorney could find a basis for bringing. *Ponce v. Wells Fargo Bank* (2018) 21 Cal.App.5th 253, 263. Here, while tenuous, a relationship exists between SoCal Gas and the incident location, mechanism and other parties involved in the incident. To the extent SoCal Gas argues plaintiff's claims have no merit, that is to be raised via a motion for summary judgment or judgment on the pleadings. SoCal Gas offered Kochem's declaration, but the relation between SoCal Gas and the remaining defendants provides a basis such that naming SoCal Gas is not inherently frivolous. SoCal Gas offered no evidence that plaintiff named SoCal Gas purely to harass or for any other improper purpose. A purportedly tenuous basis is not grounds for sanctions, but for summary judgment or judgment on the pleadings. DENIED.